

HOUSE BILL No. 1119

DIGEST OF INTRODUCED BILL

Citations Affected: IC 35-38-6.

Synopsis: Execution methods. Authorizes the death penalty to be carried out by firing squad or nitrogen hypoxia: (1) if the commissioner of the department of correction determines that use of a firing squad or nitrogen hypoxia is advisable in light of availability considerations and the resources of the department; or (2) upon request by the condemned person. Establishes a procedure to authorize execution by firing squad and by nitrogen hypoxia. Removes the requirement that an execution be carried out: (1) at the Indiana state prison; and (2) before sunrise. Makes conforming amendments and technical corrections.

Effective: July 1, 2026.

Lucas, Prescott, Bartels, Ireland

January 5, 2026, read first time and referred to Committee on Courts and Criminal Code.



Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

HOUSE BILL No. 1119

A BILL FOR AN ACT to amend the Indiana Code concerning corrections.

Be it enacted by the General Assembly of the State of Indiana:

1 SECTION 1. IC 35-38-6-1, AS AMENDED BY P.L.56-2023,
2 SECTION 322, IS AMENDED TO READ AS FOLLOWS
3 [EFFECTIVE JULY 1, 2026]: Sec. 1. (a) **Except as provided in**
4 **section 1.5 of this chapter**, the punishment of death shall be ~~inflicted~~
5 **carried out** by intravenous injection of a lethal substance or substances
6 into the convicted person:

7 (1) in a quantity sufficient to cause the death of the convicted
8 person; and

9 (2) until the convicted person is dead.

10 (b) The death penalty shall be ~~inflicted~~ **carried out before the hour**
11 **of sunrise** on a date fixed by the sentencing court. However, the
12 execution must not occur until at least one hundred (100) days after the
13 conviction.

14 (c) The warden of the **appropriate** state prison, or persons
15 designated by the warden, shall designate the person who is to serve as
16 the executioner.

17 (d) The department of correction may adopt rules under IC 4-22-2



1 necessary to implement subsection (a).

2 (e) The department of correction may make and enter into a contract
3 with an outsourcing facility, a wholesale drug distributor (as defined in
4 IC 25-26-14-12), a pharmacy (as defined in IC 25-26-13-2), or a
5 pharmacist (as defined in IC 25-26-13-2) for the issuance or
6 compounding of a lethal substance necessary to carry out an execution
7 by lethal injection. A lethal substance provided to the department of
8 correction under this subsection may be used only for the purpose of
9 carrying out an execution by lethal injection. The issuance or
10 compounding of a lethal substance under this subsection:

11 (1) does not constitute the practice of pharmacy (as defined in
12 IC 25-26-13-2);

13 (2) is not subject to the jurisdiction of the Indiana board of
14 pharmacy, the medical licensing board of Indiana, the Indiana
15 department of health, or the Indiana professional licensing
16 agency; and

17 (3) is exempt from the provisions of IC 25.

18 A pharmacist, a pharmacy, a wholesale drug distributor, or an
19 outsourcing facility that provides a lethal substance to the department
20 of correction under this subsection shall label the lethal substance with
21 the name of the lethal substance, its dosage, a projected expiration date,
22 and a statement that the lethal substance shall be used only by the
23 department of correction for the purpose of carrying out an execution
24 by lethal injection.

25 (f) The following are confidential, are not subject to discovery, and
26 may not be introduced as evidence in any civil or criminal proceeding:

27 (1) The identity of a person described in subsection (e) that enters
28 into a contract with the department of correction under subsection
29 (e) for the issuance or compounding of lethal substances
30 necessary to carry out an execution by lethal injection.

31 (2) The identity of an officer, an employee, or a contractor of a
32 person described in subdivision (1).

33 (3) The identity of a person contracted by a person described in
34 subdivision (1) to obtain equipment or a substance to facilitate the
35 compounding of a lethal substance described in subsection (e).

36 (4) Information reasonably calculated to lead to the identity of a
37 person described in this subsection, including a:

38 (A) name;

39 (B) residential or business address;

40 (C) residential or office telephone number; and

41 (D) Social Security number or tax identification number.

42 This subsection applies retroactively to any request for information,



discovery request, or proceeding, no matter when made or initiated.

SECTION 2. IC 35-38-6-1.5 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 1.5. (a) Subject to the requirements of this section, the department of correction may carry out an execution by:**

(1) firing squad; or

(2) nitrogen hypoxia;

if the commissioner of the department of correction determines, not later than seven (7) days after receipt of the supreme court's order setting the execution date, that execution by firing squad or nitrogen hypoxia is advisable in light of availability considerations and the resources of the department.

(b) The department of correction may carry out an execution by firing squad or nitrogen hypoxia if the convicted person, at least thirty (30) days before the scheduled execution date:

(1) requests execution by:

(A) firing squad; or

(B) nitrogen hypoxia; and

(2) waives in writing any legal challenge to the method of execution.

(c) The department of correction may not carry out an execution by firing squad until it has established a room and a protocol for execution by firing squad.

(d) The department of correction may not carry out an execution by nitrogen hypoxia until it has established a room and a protocol for execution by nitrogen hypoxia.

(e) The execution shall be carried out within the time frame described in section 1(b) of this chapter.

(f) An execution by firing squad shall be carried out by a firing squad consisting of three (3) individuals who are selected by the warden of the prison where the execution will be carried out. Each individual shall fire a weapon containing live ammunition. No blanks may be used.

(g) The department of correction may adopt rules under IC 4-22-2 necessary to implement this chapter.

(h) The following are confidential, are not subject to discovery, and may not be introduced as evidence in any civil or criminal proceeding:

(1) The identity of any member of an execution team.

(2) The identity of any individual designated as eligible to serve as a member of an execution team.

(3) Information reasonably calculated to lead to the identity



1 **of an individual described in this subsection.**

2 SECTION 3. IC 35-38-6-2, AS AMENDED BY P.L.67-2017,
3 SECTION 16, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
4 JULY 1, 2026]: Sec. 2. The court in which a death sentence is ordered
5 shall issue a warrant to the sheriff within fourteen (14) days of the
6 sentence:

- 7 (1) that is under the seal of the court;
8 (2) that contains notice of the conviction and the sentence;
9 (3) that is directed to the warden of the **appropriate** state prison;
10 and
11 (4) that orders the warden to execute the convicted person at a
12 specified time and date in the **appropriate** state prison.

13 SECTION 4. IC 35-38-6-3, AS AMENDED BY P.L.67-2017,
14 SECTION 17, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
15 JULY 1, 2026]: Sec. 3. A sheriff who receives a warrant under section
16 2 or section 7 of this chapter shall immediately:

- 17 (1) transport the person to the **appropriate** state prison;
18 (2) deliver the person and the warrant to the warden of the prison;
19 (3) obtain a receipt for the delivery of the person; and
20 (4) deliver the receipt to the clerk of the sentencing court.

21 SECTION 5. IC 35-38-6-4 IS AMENDED TO READ AS
22 FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 4. (a) The convicted
23 person shall be confined in ~~the a~~ state prison until the date of the
24 convicted person's execution. ~~The convicted person may temporarily~~
25 ~~be held in a maximum security facility for security purposes or during~~
26 ~~renovation of the state prison.~~ A convicted female shall be confined in
27 a maximum security women's prison until not more than thirty (30)
28 days before the date of her execution. A convicted female shall be
29 segregated from male prisoners after her transfer from the women's
30 prison.

31 (b) The convicted person's:

- 32 (1) attorney;
33 (2) physician;
34 (3) relatives;
35 (4) friends; and
36 (5) spiritual advisor;

37 may visit the convicted person while the convicted person is confined.
38 The department of correction shall adopt rules, under IC 4-22-2,
39 governing ~~such these~~ visits.

40 SECTION 6. IC 35-38-6-5 IS AMENDED TO READ AS
41 FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 5. The execution must
42 take place inside the walls of ~~the an~~ **Indiana** state prison in a room



1 arranged for that purpose. The department of correction shall provide
 2 the necessary room and ~~appliances~~ **equipment** to carry out the
 3 execution as provided in this chapter.

4 SECTION 7. IC 35-38-6-6, AS AMENDED BY P.L.67-2017,
 5 SECTION 18, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 6 JULY 1, 2026]: Sec. 6. (a) Only the following persons may be present
 7 at the execution:

8 (1) The warden of the ~~state~~ prison.

9 (2) ~~The person~~ **Persons** designated by the warden of the ~~state~~
 10 prison and any assistants who are necessary to assist in the
 11 execution.

12 (3) The prison physician.

13 (4) One (1) other physician.

14 (5) The spiritual advisor of the convicted person.

15 (6) The prison chaplain.

16 (7) Not more than five (5) friends or relatives of the convicted
 17 person who are invited by the convicted person to attend.

18 (8) Except as provided in subsection (b), not more than eight (8)
 19 of the following members of the victim's immediate family who
 20 are at least eighteen (18) years of age:

21 (A) The victim's spouse.

22 (B) One (1) or more of the victim's children.

23 (C) One (1) or more of the victim's parents.

24 (D) One (1) or more of the victim's grandparents.

25 (E) One (1) or more of the victim's siblings.

26 (b) If there is more than one (1) victim, not more than eight (8)
 27 persons who are members of the victims' immediate families may be
 28 present at the execution. The department shall determine which persons
 29 may be present in accordance with procedures adopted under
 30 subsection (c).

31 (c) The department shall develop procedures to determine which
 32 family members of a victim may be present at the execution if more
 33 than eight (8) family members of a victim desire to be present or if
 34 there is more than one (1) victim. Upon the request of a family member
 35 of a victim, the department shall establish a support room for the use
 36 of:

37 (1) an immediate family member of the victim described in
 38 subsection (a)(8) who is not selected to be present at the
 39 execution; and

40 (2) a person invited by an immediate family member of the victim
 41 described in subsection (a)(8) to offer support to the immediate
 42 family member.



(d) The warden of the ~~state~~ prison may exclude a person from viewing the execution if the warden determines that the presence of the person would threaten the safety or security of the ~~state~~ prison and sets forth this determination in writing.

(e) The department of correction:

(1) shall keep confidential the identities of persons who assist the warden of the ~~state~~ prison in an execution; and

(2) may:

(A) classify as confidential; and

(B) withhold from the public;

any part of a document relating to an execution that would reveal the identity of a person who assists the warden in the execution.

SECTION 8. IC 35-38-6-7, AS AMENDED BY P.L.67-2017, SECTION 19, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 7. (a) If the convicted person:

(1) escapes from custody before the date set for execution; and

(2) is recaptured before the date set for execution;

the convicted person shall be confined and executed according to the terms of the warrant.

(b) If the convicted person:

(1) escapes from custody before delivery to the warden of the **appropriate** state prison; and

(2) is recaptured after the date set for execution;

any person may arrest and commit the convicted person to the jail of the county in which the convicted person was sentenced. The sheriff shall notify the sentencing court of the recapture, and the court shall fix a new date for the execution. The new execution date must not be less than thirty (30) nor more than sixty (60) days after the recapture of the person. The court shall issue a new warrant in the form prescribed by section 2 of this chapter.

(c) If the convicted person:

(1) escapes from confinement; and

(2) is recaptured after the date set for execution;

any person may arrest and commit the convicted person to the department of correction. When the convicted person is returned to the department of correction or a facility or place designated by the department of correction, the department shall notify the sentencing court, and the court shall fix a new date for the execution. The new execution date must not be less than thirty (30) nor more than sixty (60) days after the recapture of the person. The court shall issue a warrant to the department of correction directing the ~~superintendent~~ **warden** of the **appropriate** state prison to execute the convicted person at a



1 specified time and date in the ~~state~~ prison.
2 SECTION 9. IC 35-38-6-10, AS AMENDED BY P.L.67-2017,
3 SECTION 20, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
4 JULY 1, 2026]: Sec. 10. If the physician of the ~~state~~ prison **where a**
5 **condemned woman is scheduled to be executed**, and one (1) other
6 physician, certify in writing to the warden of the ~~state~~ prison and the
7 sentencing court that **a the** condemned woman is pregnant, the warden
8 shall suspend the execution of the sentence. When the ~~state~~ prison
9 physician and one (1) other physician certify in writing to the warden
10 of the ~~state~~ prison and the sentencing court that the woman is no longer
11 pregnant, the sentencing court shall immediately fix a new execution
12 date.

